

VCU292152 City of Exeter vs. Clark, Josie Bell Young

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-09-10

Motion: Motion to Approve Rehabilitation Plan

Source URL: <https://www.tulare.courts.ca.gov/general-information/tentative-rulings>

Source SHA-256: 5069d1a3643aa17dcab5a6b7d5377d41b5769c5a7d7462037f262af04d5967ad

Re: City of Exeter vs. Clark, Josie Bell Young

Case No.: VCU292152

Date: September 10, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Motion to Approve Rehabilitation Plan

Tentative Ruling: To approve the plan; status conference is continued to January 13, 2027; 8:30 am; D1.

Facts

This matter concerns 333 East Palm Street, Exeter, California ("the Property") which is subject to a stipulated receivership order to rehabilitate the Property.

The Receiver indicates Property is subject to the following liens and secured claims:

1. Defaulted and secured property taxes for the 2019 through 2024 tax years in the current amount of \$28,637.35;
2. Property taxes for the 2024-2025 tax year in the amount of \$483.18;
3. The Receiver's fees and costs pursuant to Health and Safety Code section 17980.7;
4. A lien in the amount of \$11,764.02 recorded in 2020 by the City securing payment of expenses incurred to abate nuisances at the Property;

5. The City's secured claim for reimbursement of its administrative, enforcement and inspection expenses, attorney fees and costs pursuant to Health and Safety Code section 17980.7 and the Appointment Order.

The Receiver indicates, and the stipulation reflected, the Property is a public nuisance with the following hazards:

1. The exterior of the residence is dilapidated and not weatherproof;
2. There is no permanent foundation under the residence;
3. The windows and entry doors are dilapidated and inoperable;
4. There is no functional kitchen or bathroom in the residence;
5. There is no functioning water heater;
6. The electrical system is in poor condition and a fire and electrocution hazard;
7. The floors, walls and ceilings in the residence are dilapidated and heavily soiled;
8. The detached garage is dilapidated;
9. The shed roof extension over the driveway is dilapidated and failing;
10. The residence and garage were littered with trash and abandoned personal property; and
11. The yards were filled with overgrown vegetation.

The Receiver indicates the following has been performed with respect to the Property:

- A. Took possession of the Property and arranged for a locksmith to replace the locks on the residence, garage and rear yard gate;
- B. Performed multiple inspections of the Property;
- C. Oversaw the removal of overgrown vegetation and trash from the yards and boarding of the residence windows by Pablo Cruz Landscaping.
- D. Oversaw the removal and disposal of trash and abandoned personal property in the residence and garage by Next Level Debris Removal.
- E. Secured liability insurance for the Property and the Receivership Estate;

F. Obtained and reviewed building permit records for the Property;

G. Obtained and reviewed a Preliminary Title Report for the Property in order to verify the liens and secured claims which encumber it;

H. Retained environmental consultant YES Environmental, Inc. ("YEI") to perform a survey of the residence and garage for the presence of asbestos as required by the San Joaquin Valley Air Pollution Control District.

I. Met and conferred with representatives of the City and its counsel concerning the appropriate course and scope of rehabilitation of the Property;

J. Solicited bids for remediation of the asbestos-containing materials in the residence identified in the YEI asbestos survey (water heater vent pipe and roof penetration adhesive) from qualified abatement contractors.

K. Selected low bidder J & R Abatement Contractors to perform remediation of the asbestos containing materials in the residence, subject to Court approval.”;

L. Met and conferred with representatives of the Tulare County Building Department ("Building Department") in order to verify the plans and other documentation which must be submitted in support of a demolition permit application;

M. Retained Artoo Design S2dio, Inc. ("Artoo"), to prepare site plan of the Property required by the Building Department as a condition of issuing a demolition permit.

N. Solicited bids for the demolition and removal of the residence, garage and flatwork (driveway and sidewalk) from demolition contractors Aftermath Demolition and Hauling, Central Valley Environmental and Bryan Company Demolition, Inc. ("Bryan Company");

O. Selected low bidder Bryan Company to complete the demolition of the residence, garage and flatwork at the Property, subject to Court approval.

P. Obtained a market valuation of the Property as a vacant lot from Veronica Torres-Luna, a real estate agent employed by Re/Max Gold of Clovis in order to confirm the feasibility of the Rehabilitation Plan.

Q. Undertook abandonment of the utilities servicing the Property as required by the Building Department as a condition of issuance of a demolition permit;

R. Submitted a demolition permit application to the Building Department (Permit Number OPA-26-0868); and

S. Prepared a comprehensive budget for the operation of the Receivership Estate through the completion of the work described in the Rehabilitation Plan.

As to the proposed rehabilitation plan, the Receiver seeks to accomplish:

A. Removal of overgrown vegetation and trash from yards and boarding of residence by Pablo Cruz Landscaping (completed);

B. Removal and disposal of trash and abandoned personal property in residence and garage by Next Level Debris Removal(completed);

C. Asbestos survey by YEI (completed);

D. Asbestos abatement by J & R Abatement Contractors pursuant to its proposal;

E. Preparation of demolition plot plan by Artoo; and

F. Demolition and removal of residence, garage and flatwork by Bryan Company pursuant to its proposal.

The Receiver estimates \$32,549 in estimated costs to accomplish A through F above.

Authority and Analysis

Health and Safety Code Section 17980.7 provides, in relevant part, as follows:

Any receiver appointed pursuant to this section shall have all of the following powers and duties in the order of priority listed in this paragraph, unless the court otherwise permits:

(A) To take full and complete control of the substandard property.

(B) To manage the substandard building and pay expenses of the operation of the substandard building and real property upon which the building is located. . . .

(C) To secure a cost estimate and construction plan from a licensed contractor for the repairs necessary to correct the conditions cited in the notice of violation.

(D) To enter into contracts and employ a licensed contractor as necessary to correct the conditions cited in the notice of violation.

Further, section 17980.7 authorizes a receiver to perform any action which the Court deems appropriate in its discretion. (City of Santa Monica v. Gonzales (2008) 43 Cal. 4th 905.)

The Court, therefore, approves the plan.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.